

DECLARATION OF BENEFICIARY REGARDING FILING DELAY

(Form I-129 – H-1B)

I, Jose Nithin, hereby declare under penalty of perjury under the laws of the United States that the following statements are true and correct to the best of my knowledge:

1. I was previously employed in H-1B status with Meta Platforms, Inc. My employment with Meta ended on September 8, 2025. A copy of my final pay stub reflecting this last date of employment is included with the petition.
2. Following the end of my employment, I actively sought new employment and received an offer of employment from Opplane Inc. on October 30, 2025, which I promptly accepted.
3. On October 31, 2025, immediately after accepting the offer, I notified my immigration counsel of my change in employment and raised concerns that an ongoing federal government shutdown could delay certification of the required Labor Condition Application (LCA). I sought guidance on whether I should file a B-2 change of status as a precaution or proceed with an H-1B change of employer filing under an exceptional circumstances theory.
4. On October 31, 2025, my counsel advised me that USCIS had informally indicated it would exercise discretion for H-1B filings delayed due to the government shutdown and that filing a B-2 application was optional but not strictly required.
5. On November 4, 2025, my counsel further advised that USCIS was relaxing the standard 60-day grace period due to the shutdown and that the delay caused by the shutdown should be explained in the H-1B petition, as USCIS was expected to effectively pause the counting of unemployment days for the duration of the shutdown.
6. In an abundance of caution and to ensure the continuous maintenance of my lawful status, I proactively filed a Form I-539 Application to Change Status to B-2 nonimmigrant on November 5, 2025.
7. On November 14, 2025, my counsel reiterated that although the H-1B petition would be filed outside the standard 60-day grace period, the delay was acceptable due to the government shutdown and resulting LCA processing delays.
8. On December 10, 2025, Opplane Inc. filed the Form I-129 H-1B petition on my behalf.
9. At all times, I acted diligently and in good faith. I promptly secured new employment, timely consulted immigration counsel, relied on counsel's guidance, and pursued lawful options to maintain my immigration status. I did not engage in any unauthorized employment during the period following the end of my prior employment.

10. The delay in filing the H-1B petition was not due to neglect, inaction, or willful disregard of immigration requirements, but rather due to extraordinary circumstances beyond my control, specifically the federal government shutdown and its impact on LCA processing timelines.

I respectfully request that USCIS excuse the delayed filing pursuant to 8 CFR §214.1(c)(4) and approve the petition accordingly.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: 02-10-2026

A handwritten signature in black ink, appearing to read "Nithin", is written over a horizontal line.

Jose Nithin
Beneficiary